

Agenda Control in Parliamentary Oversight Committees: Evidence from India

Abstract.

How do parliamentary committees determine which executive instruments merit scrutiny? This article examines agenda control in India's Lok Sabha Committee on Subordinate Legislation, the legislature's primary mechanism for reviewing delegated legislation. This article extends the concept of agenda control from its established domain of plenary legislation to the underexamined parliamentary oversight committees. Empirically, it provides the first systematic, corpus based analysis, drawing on a comprehensive corpus of 307 committee reports spanning seven decades (1954–2023), and employing BERTopic-based computational topic modelling. We find that the Committee's effective oversight diverges systematically from what its formal mandate would predict. Procedurally, the Committee is preoccupied with chronic delays in the framing and laying of rules, producing a reactive rather than proactive oversight agenda. Substantively, attention is disproportionately concentrated on government service rules, a pattern that holds across different political administrations. We argue that this reveals agenda control operating through three interlocking mechanisms: structural-institutional constraints that limit the Committee's effective reach, actor-centred discretion in the selection of instruments for scrutiny, and delegation hazards that structurally tilt oversight to a subset of instruments. For Westminster-derived systems, the findings suggest that the accountability of delegated legislation is decided upstream of scrutiny, in the opaque processes that determine which instruments reach a committee at all. Reforms targeting committee powers alone, without addressing agenda formation, are therefore likely to fall short.

Keywords: parliamentary scrutiny, delegated legislation, Indian Parliament, agenda control, topic modelling

1. The parliamentary oversight paradox in the modern regulatory state

The expansion of the regulatory state, and the consequent explosion of delegated legislation, has prompted concern and academic inquiry across jurisdictions (Vibert 2007; Griglio 2020). Evidence from the United Kingdom, Australia, Canada, the United States, and the European Union consistently shows that the sheer volume of delegated legislation far outstrips that of primary statutes (Huber and Shipan, 2002). This raises questions of democratic accountability and the adequacy of checks and balances (Secondary Legislation Scrutiny Committee, House of Lords, 2021).

In Westminster-style systems, the typical oversight mechanism is 'laying' before parliament, whereby an instrument becomes law automatically unless parliament objects (negative

resolution), or only once parliament affirms it (affirmative resolution). Beyond the plenary, oversight is often entrusted to committees such as the UK's Joint Committee on Statutory Instruments and Australia's Senate Standing Committee on Regulations and Ordinances. These committees typically focus on technical vires, clarity, and adherence to parliamentary expectations — ensuring that delegated legislation does not 'transgress' into areas reserved for the legislature.

Yet the adequacy of this oversight has become a critical question (Fleming and Ghazi, 2023): no committee of parliamentarians can plausibly keep pace with the annual stock of delegated legislation (Page, 2001; Lupo, 2026). The negative resolution procedure, while necessary for speedy rule-making, shifts the burden onto parliament to identify and correct lacunae or overreach (Vibert, 2007).

India illustrates these challenges at a particularly acute scale: its administrative apparatus comprises more than fifty central ministries (Allocation of Business Rules, 1961), along with independent regulatory agencies, each empowered to issue delegated legislation. 'Delegated legislation' in the Indian context is an umbrella category encompassing rules (framed under the rule-making power conferred by a parent act), regulations (issued by statutory bodies and regulatory authorities), sub-rules, bye-laws (made by local or statutory bodies), and schemes and notifications issued under parent statutes.

Whether an instrument must be laid before parliament - and thus enters a committee's potential field of scrutiny - depends on the laying clause of its parent act. Typically, only rules and regulations must be laid. Purely administrative or local instruments such as traffic notifications or municipal bye-laws are generally not subject to laying and thus fall outside the committee's field. Since no single statute exhaustively lists the instruments subject to committee review, particular instrument types have sometimes been disputed between the executive and the committee (see Section 4.2).

Scrutiny of these tabled instruments falls to the Committees on Subordinate Legislation, one in each House (Kaul and Shakdher, 2016). This article studies the Lok Sabha (House of the People) committee ('CoSL' or 'Committee'). A standing committee since India's first parliament in 1950, the CoSL comprises 15 members nominated by the Speaker in proportion to party strength in the House. The Committee is intended to serve as a check on 'exercise of arbitrary, unguided and unspecified discretion' by the executive. Its recommendations serve as guidelines to ministries, which must respond, but carry no formal sanction for non-compliance (Kaul and Shakdher, 2016). Committee-based scrutiny has long been cast as a remedy for the broader decline of India's Parliament as a deliberative and oversight body (Rubinoff, 1998), yet the committees charged with overseeing delegated legislation have received little empirical examination.

The literature on legislative committees identifies structural determinants of effectiveness that include formal powers and autonomy, membership composition and partisanship, staff resources and expertise, and the link between committee recommendations and plenary action (Mattson and Strom, 1995; Norton, 2019). For delegated legislation specifically, Fleming and

Ghazi (2023) distinguish technical scrutiny, i.e. assessing whether instruments are legally made, from merits scrutiny, which requires the government to publicly defend the policy content of its proposals. De Vrieze and Norton (2020) extend this distinction, arguing that post-legislative scrutiny, or the evaluative assessment of whether legislation achieves its intended outcomes, remains unevenly developed across Westminster-derived parliaments, with political will being a key constraint. Crucially, they note that completed scrutiny must be locked into a wider parliamentary process, not treated as an end in itself.

The Indian CoSL shares structural features with analogous committees in other Westminster-derived systems. It is a technical scrutiny body dependent on ministerial compliance for the flow of instruments to its desk, and its secretariat plays a triage role analogous to that in the UK and Australia (Kashyap, 2004; Fleming and Ghazi, 2023). Two features, however, make the Indian case analytically important. First, unlike its UK and Australian counterparts, the CoSL possesses no formal annulment power: its recommendations depend on executive compliance, with no mechanism for automatic disallowance if a ministry fails to respond. Second, the scale of delegated legislation produced by the Union executive dwarfs that faced by committees in smaller or more consolidated jurisdictions.

A study of delegated legislation issued in India between 2008 and 2012 revealed that out of nearly 7000 such instruments laid before parliament only 101 had been scrutinised by the parliamentary subcommittees in this period (Singh and Dash, 2017). On this estimate, roughly 1,400 instruments are laid before the Indian parliament each year. This is the closest available approximation, since no official aggregate count of delegated legislation is published. This gap between the volume of delegated legislation produced and the small fraction that receives formal scrutiny (Burman, 2013) is the puzzle this paper takes up: what formal and informal mechanisms determine which instruments draw the Committee's attention, and which do not?

This paper asks three interrelated questions about the parliamentary oversight of delegated legislation in India. First, what are the dominant procedural and substantive patterns of the CoSL's attention across seven decades of committee reports, and do these patterns diverge from what the Committee's formal mandate under the rules of procedure would predict? Second, where such divergence exists, can it be explained by formal agenda-setting procedures alone, or does it point to informal mechanisms shaping which instruments receive scrutiny and which do not? Third, what do these patterns, taken together, reveal about the structural relationship between legislature and executive in India's system of delegated legislation oversight, and what broader lessons do they offer for comparable Westminster-derived systems?

We argue that the CoSL's oversight agenda is not primarily determined by the formal rules governing its operations, but by the interaction of institutional constraints, political discretion, and administrative inertia - dynamics that the concept of agenda control helps to theorise. Agenda control, as developed by Shepsle and Weingast (1982) and extended to parliamentary contexts by Döring (1995), refers to the formal and informal mechanisms by which

legislatures determine which executive instruments merit attention, deliberation, or intervention. Applied to oversight committees, it predicts that formal rules alone will not determine selection for scrutiny, leaving space for structural bottlenecks, institutional actors, and political calculation to shape the effective agenda. We test this prediction against the CoSL's seven-decade record.

2. Agenda control and parliamentary committees

The literature on agenda control indicates that it operates through three interlocking mechanisms. The first is structural and institutional constraint (Döring, 1995). Oversight committees do not operate in conditions of unlimited time, information, or capacity. As Döring (1995) notes, time and capacity constraints are crucial to legislative functioning, and committees of this kind typically review only a small fraction of the instruments issued annually by the executive. Operating with limited secretariat staffing and without systematic access to the executive's rulemaking calendar, such committees are structurally disposed toward reactive rather than proactive oversight. A committee can only scrutinise what reaches it, and what reaches it depends substantially on the secretariat's preliminary triage and on whether ministries comply with their obligation to lay instruments before parliament. As a result, institutional bottlenecks and information asymmetries between ministries and the committee narrow the effective scope of oversight. This dynamic is not unique to India: the UK House of Lords Secondary Legislation Scrutiny Committee (2021) has documented analogous capacity constraints, noting that the sheer volume of statutory instruments laid before parliament makes meaningful scrutiny of all instruments structurally impossible. Committee output preoccupied by procedural issues and executive compliance would therefore indicate institutional constraint setting the agenda for the committee's activities and attention.

The second mechanism is actor-centred discretion (Fleming and Ghazi, 2023; Verma, 2022). Within the structural constraints just described, individual and institutional actors exercise judgment about which instruments warrant attention. In the UK, committee chairs exercise significant informal discretion in shaping inquiry agendas, while in Australia, committee secretariats play a notable pre-filtering role in determining which items reach members for consideration (Fleming and Ghazi, 2023; Verma, 2022). Where chairpersons carry ruling party affiliations, and where secretariat staff and bureaucratic liaisons operate through informal norms and institutional memory, formally neutral selection processes may be shaped by political calculation. Where actor-centred discretion shapes the agenda, the result would be a pattern of substantive attention that cannot be explained by the formal mandate alone, with politically sensitive instruments potentially deprioritised and partisan alignments superseding procedural rules.

The third mechanism is the oversight gap produced by delegation hazards (Singh and Dash, 2017) - delegated legislation is frequently drafted in broad or ambiguous terms, precisely because the drafting discretion delegated to the executive extends to the form as well as the content of the instrument. Where instruments are drafted broadly, the technical *vires* question,

i.e. ‘does this rule stay within the bounds of the parent act?’ becomes harder to determine, and the secretariat's preliminary examination may default to less contested, and more familiar categories of instruments. Precise, self-contained rules whose legal form makes scrutiny manageable are more tractable than complex regulatory regimes issued under broadly-framed enabling provisions, such as environmental or financial markets regulations, which raise *intra vires* questions requiring specialised policy expertise. The delegation hazard mechanism therefore predicts a structural bias toward instruments whose legal form makes scrutiny manageable, rather than toward instruments whose regulatory significance makes scrutiny important.

In the broader comparative literature, agenda control has mainly been theorised and empirically examined in plenary legislative contexts. In India’s parliamentary system, the government heavily influences agenda control through session scheduling, time allocation for debates, and managing legislative priorities. This dominance often limits the chance for significant and meaningful parliamentary oversight (Verma, 2022). It has rarely been extended to committee-level proceedings, despite the fact that committees often serve as the primary venues for focussed legislative oversight, especially in the case of subordinate legislation (Döring, 1995; Rasch and Tsebelis, 2010).

Taken together, these three mechanisms generate testable predictions about what a committee’s documentary records should look like if agenda control operates as theorised. They predict that a committee's effective oversight agenda will diverge systematically from what its formal mandate would produce if applied neutrally across the full stock of delegated legislation. The divergence will manifest in two ways: procedurally, persistent preoccupation with compliance rather than substantive *vires* analysis; and substantively, in a concentration of attention on categories of instruments whose prominence cannot be explained by their frequency in the total stock of delegated legislation or by the technical demands of the Committee’s oversight mandate. These expectations, drawn from the comparative literature on delegated legislation oversight, are applied in the following sections to the CoSL's corpus..

3. Computational Methods for Parliamentary Reports

Empirical research on parliamentary proceedings in India has mainly relied on statistical representations of parliamentary sessions, such as parliamentary sittings, attendance by members of parliament, duration of deliberations (Kapur and Mehta, 2006; Singh, 2017). While recent developments in public digitisation have meant that large corpuses of governmental texts and datasets are now freely available, more advanced computational methods that require both subject-matter and methodological expertise have not been applied to parliamentary documents in India. We seek to demonstrate the application of complementary traditional and computational methods to understand the evolution of a critical parliamentary oversight function in India. Our dataset (n=307) was the corpus of Lok Sabha Committee on Subordinate Legislation reports spanning nearly seven decades from 1954 to 2023, (Authors, 2025) the only publicly available record of the Committee’s activities.

As the volume of digitally available legal texts expands, there has been increasing interest in studying legal texts through Natural Language Processing ('NLP') techniques (Grimmer and Stewart, 2013). Topic modelling is one such method that identifies latent thematic structures in document corpora. (Grimmer and Stewart, 2013; Grajzl and Murrell, 2021). It is an unsupervised machine learning method that clusters documents with similar representations, and characterises each cluster through its most distinctive terms. (Silveira et al., 2021; Rawat et al., 2023; Ristilä and Elo, 2023).

The core concept behind topic modelling is relatively straightforward: documents that discuss similar subjects will tend to use similar sets of words. For instance, reports about pension schemes will frequently use words like 'retirement,' 'benefits,' and 'employees,'. Topic modelling can therefore provide a "distant reading" of large corpora, to be supplemented by traditional "close reading" by subject-matter experts (Grajzl and Murrell, 2022). Clusters are derived bottom-up from document similarity; each cluster is then characterised by the terms that most sharply distinguish it from the rest of the corpus.¹

By revealing thematic concentrations in committee attention, topic modelling can illuminate certain types of subordinate legislation that receive disproportionate scrutiny, thereby providing empirical evidence of agenda control dynamics in parliamentary oversight. We specifically employed BERTopic, a state-of-the-art neural topic modelling technique for advanced computer-assisted text analysis, that has become a widely used tool in analysis of this nature. A detailed description of our data analysis methods is available in **Appendix I**.

Importantly, the outputs of a topic model are not the endpoint of such an exercise. Rather, they constitute data that can be productively employed as an input into subsequent analyses. Thus the topic modelling exercise leads to the identification of relevant issues, and reports on those issues, that were then closely read by the authors for substantive insights and analysis. (Grajzl and Murrell, 2022). The BERTopic results were analysed and key themes were identified by the authors, based on close reading of the reports most representative of each topic. This process helped in categorizing and understanding recurring themes in the CoSL reports.

We further cross-validated the themes emerging from this analysis. First, we conducted a systematic manual content analysis by examining the table of contents of all reports and applied a classification scheme on the category of the report (action taken report, policy suggestions, review of rules etc.) and to confirm the prominence of certain topics by noting their prevalence in the table of contents (entries on delay, service rules). The table of contents of a CoSL report consistently lists the instruments considered and the nature of the Committee's action, and this structure has remained stable across the seven decades even as report length and coverage has varied, allowing a single coding frame to be applied to the whole corpus. This manual coding process involved two of the authors independently

¹ A cluster can therefore appear unintuitive at first glance. For example, a term such as 'export' can rank as distinctive for a delay-related topic where the reports comprising that cluster disproportionately concern instruments issued under trade-related statutes.

conducting classification across different subsets of the corpus, then collaboratively developing a comprehensive classification framework. Following the establishment of the coding scheme, each author cross-verified the other's classifications to ensure coding consistency and reliability across the entire dataset. Second, we computed simple normalised frequencies of selected terms that the automated analysis had flagged, ('delay', 'action taken', 'recruitment') across the corpus by year to trace the temporal salience of themes the model and the manual coding had identified.

4. Findings: Uncovering committee priorities over seven decades of legislative oversight

The only public record of the Committee's work is in the form of its periodic reports. A total of 307 reports have been issued by the CoSL between 1954-2023. Each report lists the instruments or issues considered, sets out the Committee's examination and its recommendations, and occasionally appends minutes of sittings. Because Committee sittings are held in private, these published reports are the only systematic, publicly available record of the CoSL's work, and are therefore the natural unit of analysis for studying its behaviour over time. The reports fall into the following categories: a review of a single or multiple instruments; a substantive discussion on an issue impacting subordinate legislation in general; or a report on the 'Action Taken' by the executive on the Committee's prior recommendations.

In this section, we analyse the Committee's organisational structure, procedural rules and substantive output in the form of its public reports. We organise the findings against the three expectations set out above: procedural patterns bearing on structural-institutional constraint, substantive patterns bearing on actor-centred discretion, and patterns of absence bearing on the delegation hazard.

4.1. Procedural Priorities

The first expectation, that structural and institutional constraint would leave the Committee's output preoccupied with procedural compliance, finds support in the Committee's preoccupation with delays, and its back-and-forth with Ministries as revealed in the Committee's Action Taken reports.

The administration of the CoSL falls to the parliamentary rules of procedure.² According to these rules, the committee scrutinises and reports to the House whether the powers to make rules, regulations, bye-laws, schemes or other statutory instruments (collectively, "orders") conferred by the Constitution or delegated by parliament have been properly exercised, and ensures that they are within the bounds of the parent act (Committee on Subordinate Legislation, n.d.). It considers issues such as whether an order conforms to the Constitution

² Standing committees do not find mention in India's lengthy written constitution. Instead, as Kashyap (1979, p. 296) puts it, the framers of the Constitution 'took Parliamentary committees for granted and left it to the two houses to make provisions for them under their rules of procedure'.

and the parent act, trespasses on matters proper to primary legislation, operates retrospectively without authority, makes unusual or unexpected use of the delegated power, or has been published or laid with unjustifiable delay. (“Rule 320”, Rules of Procedure and Conduct of Business in Lok Sabha, 2019). If an order fails any of these tests, they recommend that the order be amended.

These rules outline an assessment of technical *vires* as the mandate given to the CoSL. In fulfilling this mandate, issues of delays by the executive have been repeatedly raised by the Committee from the outset. These delays are of two principal kinds: delays beyond 6 months by ministries in framing rules under parent acts, and delays in laying instruments before parliament after they are notified in the gazette (recommended to be done within 15 days).

Fig 1: Normalised frequency of term ‘delay’ by year

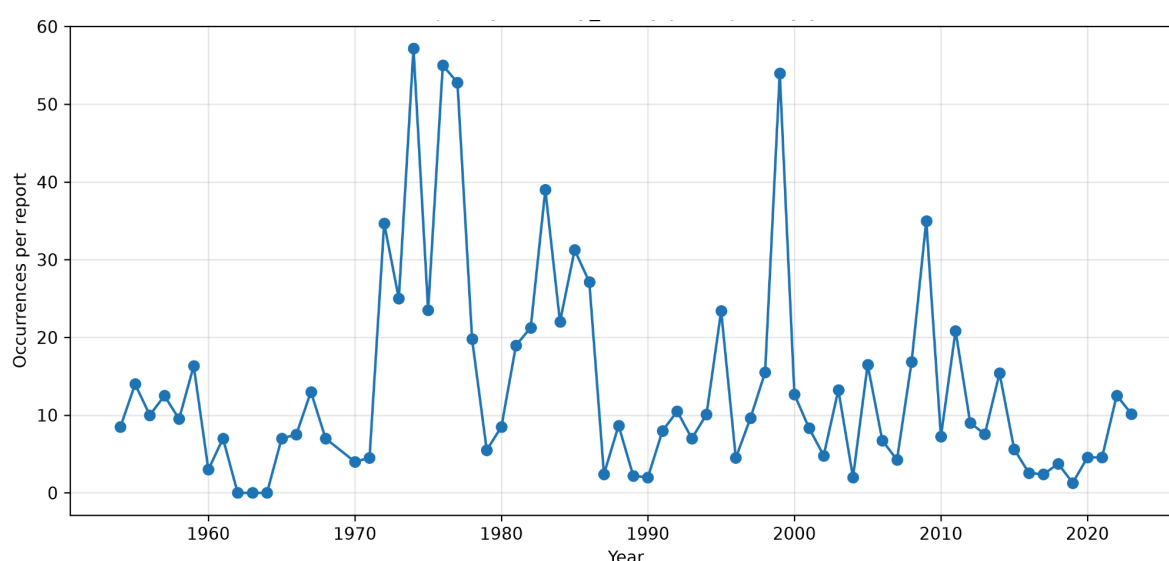
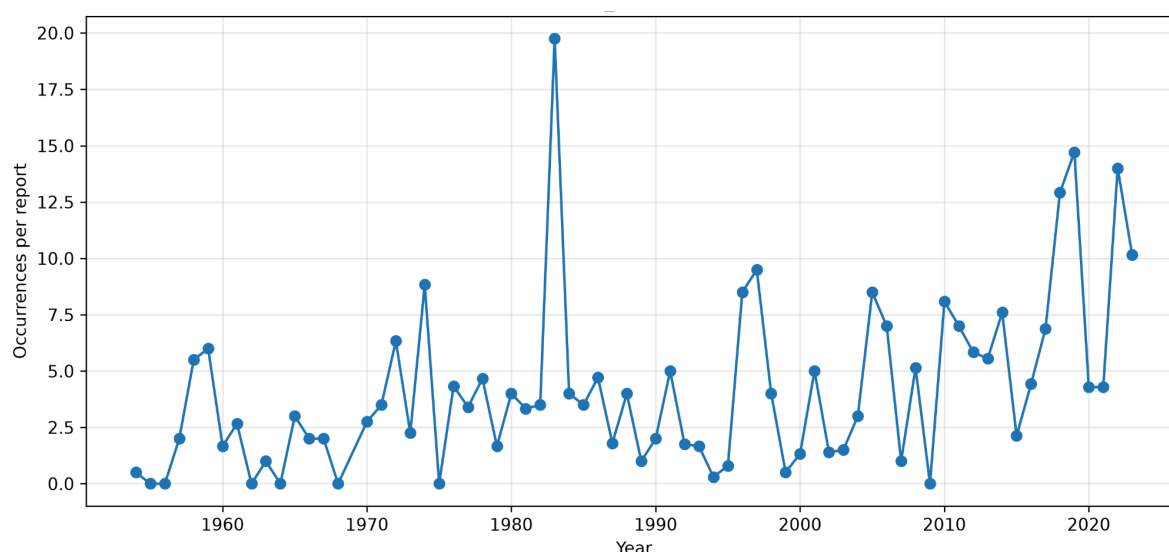


Fig 1, therefore, traces the chronological frequency of the term ‘delay’ as they appear in the reports, normalised by the number of reports each year. This shows discussions across all decades, with spikes in the turbulent emergency era (1975-77), and again in the coalition era (1995-2010) when Committees had more diverse participation from different political parties. It indicates that this has been an issue over the decades; and the Committee's own assessment of these delays has been scathing and remarkably repetitive across reports. Kaul and Shakhder (2016, p. 944) mention over two hundred instances of delay in tabling pointed out by the Committee during the first Lok Sabha alone. In 1996, the Committee described delay in framing as ‘a recurring phenomenon’ persisting ‘in utter disregard’ of its recommendations, observing that ministerial inaction ‘quite often defeats the very purpose of such Legislations,’ with matters meant to be governed by statutory rules instead governed in practice by executive directions and guidelines (10 CoSL 24). Fifteen years later it was recording framing and laying delays of twenty-odd months and, in one case, six years, and describing the nodal Ministry of Parliamentary Affairs as having ‘remained a moot spectator’ to the breach of its recommendations (15 CoSL 21).

The other source revealing the relationship between the executive and the Committee are the ‘Action Taken’ reports periodically issued by the Committee. Sixty-five of the 307 reports (21%) fall into this category. These are in the form of a dialogue between the executive and legislature. They reproduce the responses of each ministry to the Committee’s earlier recommendations, enumerate the recommendations on which the Committee is satisfied with the response, and identify those on which it requires further action or reiterates its position. **Fig 2** shows the frequency of the term ‘action taken’ as it appears in reports over time.

Fig 2: Normalised frequency of the term ‘action taken’ by year



The Action Taken reports reveal the back-and-forth dialogue on the Committee’s recommendations, including the failures of the executive to implement the Committee’s suggestions. When the Committee pointed out the retroactive effects of certain insurance rules, for instance, the ministry simply gave no reply, then ‘regretted the delay’ and ignored the recommendations of the Committee until it was moot (10 CoSL 18).

The 21st Report of the 15th Lok Sabha, issued in 2011, took a more systematic approach to the problem of inadequate action by the executive, restating claims first made in the 1st, 2nd, 3rd and 4th Lok Sabhas. Its general list of structural reform included: rules to be framed within six months of an act’s commencement, laying in parliament to occur within 15 days of gazette publication, no retrospective effect without a clarification that no one is adversely affected, and at least 30 clear days for public comment on draft rules.

The 2011 Report pointed out that ministries failed to adhere to these norms, apologised, noted the Committee’s observations for future compliance, and rectified specific defects only once pointed out. The Committee concluded that ministries ‘start initiating action only after a reference is made to them,’ often following protracted correspondence. The Ministry of Parliamentary Affairs, for its part, told the Committee that no mechanism existed within it to follow up on compliance - an admission, from the executive’s own coordinating ministry, that the accountability loop was simply not being closed (15 CoSL 21).

The reports reveal, therefore, that lack of systemic reform has resulted in the persistence of delay-related content, and repeated, ignored directives to various ministries. These are indications of the structural and institutional constraints under which the CoSL has had to fulfil its mandate. The Committee cannot set its agenda proactively if ministries routinely fail to lay instruments on time, or implement the procedural reforms already made, such that the Committee's time is spent on these procedural concerns. This reactive posture is not unique to India's CoSL: analogous patterns have been observed in the UK's Delegated Powers and Regulatory Reform Committee and Australia's Senate Standing Committee on Regulations and Ordinances (Fleming and Ghazi, 2023). What is distinctive in the Indian case is the absence of any formal sanction mechanism such as annulment of rules at the Committee level, which means the Committee's expressions of concern are structurally toothless unless the executive chooses to respond. This finding exemplifies the concern raised by De Vrieze and Norton (2020) that the completion of scrutiny must not be treated as an end in itself, but must be integrated into wider parliamentary deliberation and executive accountability, a loop that the CoSL's institutional design, lacking both annulment powers and formal sanction mechanisms, structurally fails to close.

4.2. Substantive Priorities

The second expectation, that actor-centred discretion would produce substantive concentrations not explained by the formal mandate, is examined next through analysis of the substantive priorities of the Committee as revealed in its reports.

The BERTopic analysis, following methods elaborated in Section 3, generated 20 distinct thematic clusters across the reports (**Appendix II**). Following the approach by Grajzl and Murrell (2022), the cluster of words generated by the automated analysis is set out in Column B, while the label or topic applied by the authors, based on close reading of the highest-ranked reports within each cluster, is labelled as Column A.

A particularly striking finding emerged regarding the prevalence of government service or recruitment-related issues. As listed in **Table 1**, 9 of the 20 identified topics related to government services including various aspects of public sector hiring practices and employment regulations.

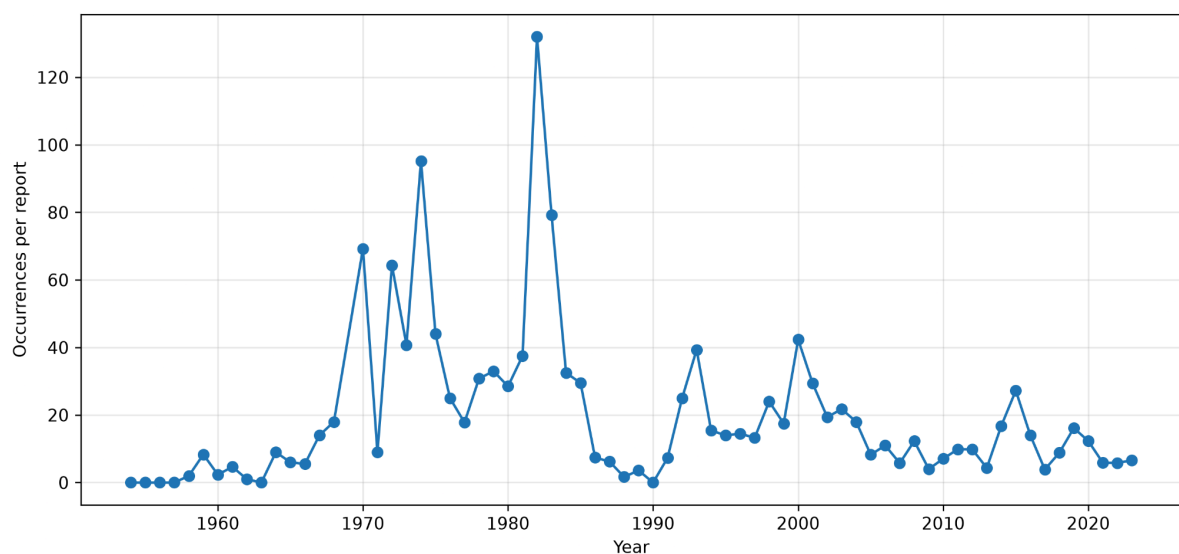
Table 1: Topics in the corpus related to government service

Topic No.	Column A: Topic	Column B: Terms
1	<i>Recruitment publication</i>	['department', 'report', '2010', '2008', 'time', 'dated', 'recruitment', 'published', 'also', 'ratification']
3	<i>Government recruitment</i>	['dated', 'regulations', 'recruitment', 'three', 'employees', 'sort', 'probation', 'contract', 'amendment', 'gazette']
4	<i>Government Pension Scheme</i>	['pension', 'employees', 'option', 'report', 'tension', 'taken', 'also', 'aaims', 'scheme', 'regulations']

6	<i>Government service rules</i>	['recruitment', 'probation', '1995', '1993', 'dated', 'service', 'reasons', '1996', 'amendment', 'time']
7	<i>Amendment of service rules</i>	['amendment', 'department', 'service', 'made', 'order', 'central', 'report', '1971', 'recruitment', '1970']
9	<i>Government Recruitment</i>	['department', 'recruitment', 'amendment', '1978', 'dated', '1980', 'regulations', 'central', 'service', 'affairs']
13	<i>Recruitment of Officers</i>	['1969', 'group', 'recruitment', 'officers', 'posts', 'service', 'amendment', 'glass', 'years', 'central']
15	<i>Central recruitment rules</i>	['1978', 'department', 'amendment', 'dated', 'service', 'report', 'reply', 'recruitment', 'made', 'central']
19	<i>Provident Fund for Life Insurance Corporation employees</i>	['corporation', 'regulations', 'insurance', 'insurance corporation', 'life', 'employees', 'provident', 'authority', 'fund', 'provident fund']

Manual content analysis further confirmed this finding. 132 out of the 307 reports, or ~43% of the reports reviewed contained at least one subordinate instrument dealing with government service, such as rules regarding public sector recruitment, salaries, allotment of residences, conditions of service, pensions and provident funds. To further investigate the prevalence of government service-related reports, we performed a chronological frequency analysis of the term ‘recruitment’, a term appearing in a significant proportion of the documents related to government service (**Fig 3**). The analysis reveals mentions of recruitment over the decades beginning in the 1960s, with occasional spikes possibly corresponding to increased government hiring drives. (See for e.g. 7 COSL 13 that predominantly deals with government recruitment.)

Fig 3: Normalised frequency of term ‘recruitment’ by year



A typical example of the nature of inquiry into these rules would be the 15th Report of the 14th Lok Sabha (14 CoSL 15), which reviewed recruitment rules and observed discrepancies in probationary periods. While such observations are not beyond the purview of the Committee, neither is it a straightforward application of the technical rules of delegated legislation review. The Committee here is commenting on substantive issues related to government recruitment. This, coupled with the prominence of such topics themselves in both the manual and automated analysis, indicates that significant priority is accorded to issues of government service in the Committee's agenda, although there is no explicit policy commitment to this effect.

Reasons for this are not formally captured: there is no documentation indicating that a certain subject matter is to be accorded higher priority. The CoSL's mandate, as set out in Rule 320 of the Lok Sabha Rules of Procedure, is primarily a technical *vires* function. It is supposed to ask whether a rule stays within its parent act, not whether the rule is good policy. Recruitment rules, promotion criteria, and pension entitlements are not especially likely to raise *vires* concerns of this sort.

Decisions on which rules appear before the Committee for review is made by the Lok Sabha secretariat, which is an independent bureaucratic department headed by the speaker of the House. According to Kaul and Shakhder (2016, p. 946), Orders are first examined by the Secretariat to see if they potentially trigger any of the grounds mentioned in Rule 320, or 'any practice or direction of the Committee'. The centrality of the secretariat in this process has been documented by Kashyap (2004), who, writing as a former Secretary-General of the Lok Sabha with direct institutional knowledge, emphasised the practical influence of secretariat staff in mediating the executive-legislature interface within committee proceedings.

The Secretariat in this preliminary triage appears to systematically surface government service rules for committee attention in an instance of actor-centred discretion. The Committee's interest in service rules is further revealed in its position on public service regulations directly enacted under Article 309 of the Constitution, which does not mandate laying of these regulations before parliament. The Committee's position has been that laying (and review) of these service regulations is mandatory, a stance that has been opposed by the executive. (17 CoSL 28).

This prioritisation may be the result of bureaucratic familiarity with government service rules, and informal institutional norms. Recruitment and service rules are the most standardised genre of delegated legislation issued by the union executive: the Department of Personnel and Training prescribes consolidated guidelines, model rules, and a uniform schedule format for their framing and amendment (DoPT, 2022). An instrument in this form can be assessed against hundreds of near-identical predecessors without specialised policy expertise. Deviations, such as the probationary-period discrepancies noted above, are immediately apparent to the expert. For a secretariat conducting preliminary triage, service rules are thus the choice of least resistance.

An alternate explanation for the oversized presence of government service rules in the CoSL's corpus is that such rules constitute a comparably large proportion of the total stock of delegated legislation laid before parliament. If so, the CoSL's attention would be proportional rather than selective. The Law Commission of India enumerated 49 distinct topics on which legislation is enacted by the union, spanning from finance, defence, welfare, health to the environment. (Law Commission of India, 2014). Government service rules, under the single topic of 'public employees' are therefore unlikely to constitute 43% of the rules issued across the union executive branch. Their prominence in the corpus is therefore anomalous relative to the CoSL's formal mandate.

Demand-side pressure, from public representations and government employees or their associations may also lead to disproportionate selection of these rules, but the reports record no such representations in connection with service rules. None of these explanations are consistent with the formal procedural mandate as the primary determinant of the Committee's agenda. Their overrepresentation in the corpus is therefore most consistent with actor-centred discretion as a mechanism of agenda control, particularly once the alternative explanations considered above are set aside.

4.3. Patterns of absence

The third expectation, that delegation hazards would tilt scrutiny toward legally tractable instruments and away from complex regulatory domains, creating an oversight gap, is assessed through what the corpus does not contain. The converse of the concentration on government service is equally revealing. Of the 20 BERTopic-identified topics (**Appendix II**), none corresponded to environmental regulation, financial markets oversight, or telecommunications licensing, domains where the volume and regulatory significance of delegated legislation is high, but where the legal form of the instruments makes *vires* assessment more complex. The absence of these domains from the topic model is consistent with the delegation hazard mechanism: legally tractable instruments are systematically more likely to surface for scrutiny than complex regulatory regimes whose intra vires questions require specialised policy expertise.

The Committee can and has taken cognizance of representations or complaints received from the public, such as the industry representations leading to the report on packaging of tobacco products (16 CoSL 4). However, such cognizance of referred rules is not mandatory, contributing to the oversight gap. Issues raised by opposition members of parliament asking for consideration of rules to the CoSL have been ignored by the chairperson, such as when rules enabling internet shutdowns were notified by the government (Sebastian, 2018; Abraham, 2022). Which public representations get heard, and which do not, however, are based on an opaque process subject to agenda control, devoid of any particular procedural criteria.

5. Discussion: Traces of agenda control

The CoSL's seven-decade record reveals an institution that is structurally dependent on ministerial compliance for its workflow, and substantively skewed toward categories of instruments (government service rules). Fleming and Ghazi's (2023) cross-national typology positions technical scrutiny committees as systematically constrained in providing effective merit-based scrutiny, a conclusion our findings confirm and extend to the agenda-setting dimension of committee behaviour. The contribution of this paper is to show that the oversight deficit is shaped upstream by the processes of agenda formation that determine which instruments ever reach the Committee's attention.

Each of the three theoretical mechanisms comprising our agenda control framework: structural-institutional constraint, actor-centred discretion, and delegation hazards finds empirical expression in the corpus. The first is most visibly confirmed by the recurrent appearance of the term 'delay' across the reports, and the exchanges revealed in the Action Taken reports. This pattern of non-compliance, unaccompanied by any formal consequence, reveals an agenda-setting process that is reactive and heavily shaped by information asymmetries between ministries and the committee. This is the dynamic that Döring (1995) identifies at the plenary level, where time is the scarce resources that structure what a legislature can attend to. It also accords with Huber and Shipan's (2002) account of how the executive's informational advantages condition the effectiveness of legislative control. The committee scrutinises what reaches it; what reaches it is substantially determined by executive behaviour in the form of the ministries' prioritisation rather than parliamentary initiative.

The actor-centred discretion mechanism is consistent with the substantive skew identified in the topic modelling results. The prominence of government service rules cannot be explained by the committee's mandate, which extends across the full spectrum of subordinate legislation. It is, however, consistent with a selection process shaped by institutional memory and informal norms. This is consistent with Verma's (2022) finding that executive influence over agenda-setting in the Indian parliament weakens its oversight function, and with the broader agenda-setting literature's expectation that actors positioned at institutional gateways exercise disproportionate influence over outcomes (Shepsle and Weingast, 1982; Rasch and Tsebelis, 2010).

The third mechanism is revealed through the patterns of absence of complex or politically sensitive rules in the corpus, pointing to a form of agenda control that operates not only through deliberate exclusion but through structural incapacity to engage with regulatory complexity. Page's (2001) study of everyday rule-making similarly emphasises that the sheer routine volume of delegated legislation defeats comprehensive scrutiny; the tilt toward tractable subsets that we observe is one institutional response to that condition.

Working together, these mechanisms create a form of agenda control that is not the product of a single committee chair, bureaucrat or political actor. Rather, it indicates layered institutional design where each mechanism reinforces the other. The cumulative effect is an oversight

function whose effective scope is substantially narrower than its formal mandate suggests. This systemic character of the oversight deficit has direct implications for reform: interventions targeting any single mechanism in isolation will be insufficient unless they address the interaction between all three.

In Westminster-derived systems with similar institutional architectures such as the United Kingdom, Australia, Canada, New Zealand, parliamentary committees scrutinising subordinate legislation face structurally analogous pressures. Our framework suggests that opacity in agenda-setting is likely to be a common feature of such systems, not a pathology specific to India. Two features of the Indian case, however, make the agenda control dynamics particularly acute: first, the absence of any formal sanction powers at the committee level; and second, the scale of delegated legislation produced by the union executive, which creates a triage problem of a different order of magnitude from that faced by committees in smaller jurisdictions. These distinctive features make the Indian case a useful case for the study of committee-level oversight.

6. Conclusion

The paper systematically lays out the mechanism of parliamentary oversight over delegated legislation in India through the CoSL. The CoSL is expected to ‘oversee and report on the activity of the executive’ (Kaul and Shakhder, 2016), ‘standardize the oversight procedure’ and ‘broaden the typology of scrutinized orders’ (Lupo, 2026). Our analysis however reveals the inadequacy of the CoSL’s oversight owing to agenda control. We answer the three questions about the formal scrutiny raised at the start. First, we trace the procedural and substantive patterns in CoSL’s broad regulatory purview, particularly its sustained preoccupation with service matters. While these do fall within the Committee’s formal remit, their volume suggests an underlying pattern of agenda-setting influenced by informal mechanisms, and not fully explained by procedural rules alone. Second, our study shows mechanisms of agenda control as the crucial, and relatively overlooked determinant which could convincingly explain the Committee’s attention.

Third, agenda control is reactive and shaped by institutional bottlenecks, political discretion, information asymmetries between ministries and the parliamentary committee and administrative inertia, and this reveals the complex dynamics between the legislative and executive branches of the government. This is not peculiar to India, and has been a common feature across Westminster based parliamentary systems, including the United Kingdom, Australia, Canada, New Zealand (Fleming and Ghazi, 2023). Our research therefore provides useful, urgent lessons to a global audience on the importance of in-built systems of democratic accountability.

In answering these questions, this article makes two main contributions. Theoretically, it extends the concept of agenda control from its established domain of plenary legislative proceedings to the under-examined terrain of parliamentary oversight committees, demonstrating that the selection of items for committee scrutiny is itself a site of institutional

power, one shaped by structural constraints, actor discretion, and substantial gaps in oversight. Empirically, it provides the most systematic analysis to date of the Lok Sabha Committee on Subordinate Legislation, drawing on a comprehensive seven-decade corpus to reveal patterns of procedural preoccupation and substantive concentration that formal procedural accounts cannot explain. Together, these contributions argue that committee-level agenda control is the essential determinant of the democratic accountability of the regulatory state.

On the question of adequacy, the documentary record permits a direct answer: oversight in practice reaches a small and skewed fraction of the instruments the mandate covers, and the Committee's recommendations carry no sanction when ignored. However, a limitation of this study is that these findings are inferred from the Committee's official reports, which are possibly stylised records rather than transparent accounts of deliberation. This limits the causal claims we can make about *why* particular instruments were selected, not the finding that oversight in practice diverges from the mandate. Future work could therefore enrich this approach by complementing computational text analysis with interviews, or observational studies of committee practice.

Finally, the analysis also points to possible reform directions which can also be taken up in future work. Concerns have been raised about the increasing use of delegated legislation which is broad or ambiguously worded. Although CoSL operates as an important check on delegated legislation, its influence is constrained by the sheer volume of subordinate instruments, and executive dominance in shaping legislative agendas (Page, 2001; Lupo, 2026). Future studies could look at how procedural changes and innovations such as binding rules on timelines, improved resources for committees, drafting of rules alongside bills, or organised stakeholder consultation impact the quality of scrutiny in practice. Another area to explore is the institutional design of parliamentary committees, looking at questions of membership composition, tenure, and the extent of subject-matter expertise. Lastly, computational methods can provide effective and usable methods (Pretnar Žagar, 2024) to track the long-term impact of such reforms, allowing scholars to map shifts in agenda control and substantive focus over time.

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- Tenth Lok Sabha, Eighteenth Report (May, 1995)
- Fourteenth Lok Sabha, Fifteenth Report (May, 2007)
- Sixteenth Lok Sabha, Fourth Report (March 2015).
- Fifteenth Lok Sabha, Twenty-First Report (December, 2011)
- Seventeenth Lok Sabha, Twenty-Eighth Report (March, 2023)

Appendix I

The methodology involved two major phases: text pre-processing and topic modelling. The dataset comprised raw textual data from the reports of CoSL of the Lok Sabha, which contained formal parliamentary language and domain-specific terminology. Common stop words were eliminated using both predefined NLTK stop words and a custom stopword list of terms frequently occurring in government documents but lacking semantic value in topic modelling, such as ‘government,’ ‘ministry,’ ‘sabha,’ and ‘legislation’ which appear in virtually every report, and does not help distinguish between topics. Additionally, all words with a character length of three or less were removed to eliminate OCR fragments, non-informative tokens and abbreviations, an issue amplified due to poor quality scans. Initially, spelling correction was not performed; however, in the final stage of pre-processing, TextBlob was applied for spelling correction to ensure text consistency while preserving domain-specific terminology.

The model was tested with different values for “minimum topic size”- a parameter that determines the minimum number of documents required for a topic to be formed. After experimenting with multiple values, setting `min_topic_size` to 3 produced a total of 20 topics that were the most relevant and interpretable. This optimal setting prevents the algorithm from populating irrelevant topics based on just one or two unusual reports; instead, configuring frequently reported topics in 3 documents is found appropriate and is declared as a distinct topic. Importantly, the key substantive finding on the concentration of topics around government service rules was robust to alternative parameter settings. With `min_topic_size` set to 5 and 10 respectively, government service-related topics continued to constitute the largest thematic cluster, though the number of distinct topics decreased as expected with higher thresholds. A `CountVectorizer` with an n-gram range of (1,2) was employed to capture both unigrams (single words) and bigrams (two-word phrases), allowing for more nuanced phrase detection in the topics. This means the algorithm considers not just individual words like ‘pension’ but also two-word phrases like ‘pension scheme’ or ‘recruitment rules,’ which often carry more specific meaning than individual words alone.

Once the final list of topics was derived, we applied class-based TF-IDF (Term Frequency–Inverse Document Frequency ‘c-TF-IDF’) to identify the reports most representative of those topics. c-TIF-IDF ranks terms highly when it occurs frequently within the cluster but rarely across the others. The same representation identifies each cluster's most representative reports. i.e those whose term profiles most closely match the cluster's c-TF-IDF signature, and these were selected for close reading

Appendix II

Table: BERTopic output with author-applied labels.

Topic #	Column A: Topic	Column B: Terms
0	<i>Tobacco regulations</i>	['tobacco', 'report', 'also', 'medical', 'health', 'taken', 'regulations', 'council', 'made', 'insurance']
1	<i>Recruitment publication</i>	['department', 'report', '2010', '2008', 'time', 'dated', 'recruitment', 'published', 'also', 'ratification']
2	<i>Amendment of central rules</i>	['amendment', 'service', 'state', 'department', 'central', 'order', '1968', 'made', 'board', 'effect']
3	<i>Government recruitment</i>	['dated', 'regulations', 'recruitment', 'three', 'employees', 'sort', 'probation', 'contract', 'amendment', 'gazette']
4	<i>Government Pension Scheme</i>	['pension', 'employees', 'option', 'report', 'taken', 'also', 'aiims', 'scheme', 'regulations']
5	<i>Amendment of central rules</i>	['2003', 'ratification', '2002', 'time', 'department', 'amendment', '2004', 'dated', 'period', 'taken']
6	<i>Government service rules</i>	['recruitment', 'probation', '1995', '1993', 'dated', 'service', 'reasons', '1996', 'amendment', 'time']
7	<i>Amendment of service rules</i>	['amendment', 'department', 'service', 'made', 'order', 'central', 'report', '1971', 'recruitment', '1970']
8	<i>Defence rules</i>	['1966', 'orders', 'board', 'made', '1960', 'defence', '1961', 'central', 'house', 'members']
9	<i>Government Recruitment</i>	['department', 'recruitment', 'amendment', '1978', 'dated', '1980', 'regulations', 'central', 'service', 'affairs']
10	<i>Central rules</i>	['1957', 'made', '1956', 'section', 'laid', 'board', 'central', 'state', 'parliament', 'clause']
11	<i>Laying of Framed Regulations</i>	['framed', 'department', '2022', 'section', 'regulations', 'framing', '2021', 'acts', 'laid', 'status']
12	<i>Delay in laying orders</i>	['export', 'order', 'exports', 'department', 'control', 'made', 'amendment', 'delay', 'representative', 'public']
13	<i>Recruitment of Officers</i>	['1969', 'group', 'recruitment', 'officers', 'posts', 'service', 'amendment', 'glass', 'years', 'central']
14	<i>Railway rules</i>	['report', 'made', 'reply', 'department', 'state', 'note', 'railway', 'dated', 'recommendation', 'force']
15	<i>Central recruitment rules</i>	['1978', 'department', 'amendment', 'dated', 'service', 'report', 'reply', 'recruitment', 'made', 'central']
16	<i>Ayurveda and Homeopathy</i>	['ayush', 'ayurveda', 'medical', 'medicine', 'homeopaths', 'admission', 'research', 'central', 'central council', 'recommendations']

	<i>Medicine Regulations</i>	
17	<i>Drugs and Cosmetics Regulation</i>	['amendment', 'drugs', 'deposit', 'section', 'ratification', 'fertilizes', 'cosmetic', 'dated', 'health', 'published']
18	<i>Silk Board rules</i>	['1955', 'made', 'public', 'board', 'days', 'central', 'silk', 'order', 'laid', 'section']
19	<i>Provident Fund for Life Insurance Corporation employees</i>	['corporation', 'regulations', 'insurance', 'insurance corporation', 'life', 'employees', 'provident', 'authority', 'fund', 'provident fund']